

Response form

Case number	
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You must complete all questions marked with an *

1 Claimant's name

1.1	Claimant's name	
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2 Respondent's details

2.1	Title, if applicable.	☐ Mr	☐ Mrs	☐ Miss	☐ Ms	☐ Other	
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2.2*	Name of individual, company or organisation	
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2.3	Enter the company number, if applicable.	
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2.4	What type of employer is the respondent?	
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2.5	Name of contact	
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2.6*	Address	
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Postcode	
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	DX number (If known)	
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2.7	Phone number Where we can contact you during the day	
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	Mobile number (If different)	
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2.8	How would you prefer us to contact you? (Please tick only one box)	☐ Email	☐ Post	Whatever your preference please note that some documents cannot be sent electronically
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2.9	Email address	
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- 2.10 Which types of hearing can you attend
Further details on video hearings can be found on the following link www.gov.uk/guidance/what-to-expect-when-joining-a-telephone-or-video-hearing

- ☐ I can take part in video hearings
☐ I can take part in phone hearings

2.11 How many people does this organisation employ in Great Britain?

2.12 Does this organisation have more than one site in Great Britain?

- ☐ Yes ☐ No

2.13 If Yes, how many people are employed at the place where the claimant worked?

Preference for judge or panel

You can have your case heard by:

- A judge; or
- A judge with two non-legal members, known as a 'panel'.

Non-legal members are lay people appointed because of their particular experience in the workplace as either workers or managers. A panel will consist of a judge, a member with worker or union experience, and a member with management experience. Each has an equal say in the decision.

A judge will decide whether your case is heard by a judge or by a panel. When making this decision, the judge will consider whether the case involves the sort of legal or factual problem where the experience of the non-legal members may help the tribunal reach its decision.

Presidential Guidance explains the types of cases where this experience may help.

Practice Directions and Guidance for Employment Tribunals (England and Wales)

<https://www.judiciary.uk/guidance-and-resources/employment-rules-and-legislation-practice-directions/>

Directions and Guidance for Employment Tribunal (Scotland)

<https://www.judiciary.uk/guidance-and-resources/directions-for-employment-tribunals-scotland/>

You have an opportunity to say if you would like your case heard by a judge or a panel. The judge will then consider your preference.

If you express a preference, you will be asked to give reasons.

- 2.14 How do you prefer to have your case heard?
- ☐ I have no preference
- ☐ I prefer my case to be heard by a judge. Give your reasons in the box below.
- ☐ I prefer my case to be heard by a panel including non-legal members. Give your reasons in the box below.

3 Acas Early Conciliation details

- 3.1 Do you agree with the details given by the claimant about early conciliation with Acas? ☐ Yes ☐ No

If No, please explain why, for example, has the claimant given the correct Acas early conciliation certificate number or do you disagree that the claimant is exempt from early conciliation, if so why?

4 Employment details

- 4.1 Are the dates of employment given by the claimant correct? ☐ Yes ☐ No ☐ Not applicable

If Yes, please **go to question 4.2**

If No, please give the dates and say why you disagree with the dates given by the claimant

When their employment started / /

When their employment ended or will end / /

Do you want to provide any further information about the claimant's employment dates?

- 4.2 Is their employment continuing? ☐ Yes ☐ No ☐ Not applicable

- 4.3 Is the claimant's description of their job or job title correct? ☐ Yes ☐ No ☐ Not applicable

If Yes, please **go to Section 5**

If No, please give the details you believe to be correct

5 Earnings and benefits

- 5.1 Are the claimant's hours of work correct? ☐ Yes ☐ No ☐ Not applicable

If No, please enter the details you believe to be correct.

 hours each week

- 5.2 Are the earnings details given by the claimant correct? ☐ Yes ☐ No ☐ Not applicable

If Yes, please **go to question 5.3**

If No, please give the details you believe to be correct below

Pay before tax
(Incl. overtime, commission, bonuses etc.)

 £

☐ Weekly ☐ Monthly ☐ Annually

Normal take-home pay
(Incl. overtime, commission, bonuses etc.)

 £

☐ Weekly ☐ Monthly ☐ Annually

- 5.3 Is the information given by the claimant correct about being paid for, or working a period of notice? ☐ Yes ☐ No ☐ Not applicable

If Yes, please **go to question 5.4**

If No, please give the details you believe to be correct below. If you gave them no notice or didn't pay them instead of letting them work their notice, please explain what happened and why.

- 5.4 Are the details about pension and other benefits e.g. company car, medical insurance, etc. given by the claimant correct? ☐ Yes ☐ No ☐ Not applicable

If Yes, please **go to Section 6**

If No, please give the details you believe to be correct.

6 Response

6.1* Do you contest all or part of the claim? ☐ Yes ☐ No

If No, please **go to Section 7**

If Yes, please set out the facts which you rely on to contest the claim.
(See Guidance – If needed, please use the blank sheet at the end of this form.)

7 Employer's Contract Claim

- 7.1 Only available in limited circumstances where the claimant has made a contract claim. (See Guidance)
- 7.2 If you wish to make an Employer's Contract Claim in response to the claimant's claim, please tick this box and complete question 7.3 ☐
- 7.3 Please set out the background and details of your claim below, which should include all important dates (see Guidance for more information on what details should be included)

8 Your representative

If someone has agreed to represent you, please fill in the following. We will in future only contact your representative and not you.

8.1	Name of representative	
8.2	Name of organisation	
8.3	Address	
	Postcode	
8.4	DX number (If known)	
8.5	Phone number	
8.6	Mobile phone	
8.7	Their reference for correspondence	
8.8	How would you prefer us to communicate with them? (Please tick only one box)	☐ Email ☐ Post
8.9	Email address	
8.10	Which types of hearing can you attend Further details on video hearings can be found on the following link www.gov.uk/guidance/what-to-expect-when-joining-a-telephone-or-video-hearing	☐ I can take part in video hearings ☐ I can take part in phone hearings

9 Disability

9.1 In the respondent party - are you aware of any physical, mental or learning disability or health conditions which requires support? ☐ Yes ☐ No ☐ I'm not sure yet

If Yes, tell us what this disability or condition is and what support that anyone in the respondent party, including representative and witnesses would need as the claim progresses through the system. Consider any hearings that may take place at tribunal buildings.

We know people with disabilities sometimes need support to access information and use our services. We call this a reasonable adjustment. Some reasonable adjustments need to be agreed by a judge, and you can discuss with the tribunal if your needs change.

Reasonable adjustments can include:

- documents in alternative formats, colours and fonts
- help with communicating, sight, hearing, speaking and interpretation
- access and mobility support if a hearing takes place in person

General Data Protection Regulations

The Ministry of Justice and HM Courts and Tribunals Service processes personal information about you in the context of tribunal proceedings.

For details of the standards we follow when processing your data, please visit the following address <https://www.gov.uk/government/organisations/hm-courts-and-tribunals-service/about/personal-information-charter>.

To receive a paper copy of this privacy notice, please call our Customer Contact Centre - see details below

Please note: a copy of the claim form or response and other tribunal related correspondence may be copied to the other party and Acas for the purpose of tribunal proceedings or to reach settlement of the claim.

Customer Contact Centre

England and Wales: 0300 323 0196

Welsh speakers only: 0300 303 5176

Scotland: 0300 790 6234

(Mon - Fri, 9am -5pm), they can also provide general procedural information about the Employment Tribunals.